



POLICE DEPARTMENT

February 24, 2026

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Duane Harper :

Tax Registry No. 956720 :

Housing PSA 3 :

Case No.

C-034393

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Clair Tzeng, Esq.
Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For the Respondent:

Craig Hayes, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

POLICE OFFICER DUANE HARPER

CHARGES AND SPECIFICATIONS

1. Police Officer Duane Harper, on or about April 13, 2024, while off duty and assigned to the Housing Police Service Area #3, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer engaged in a physical altercation with an individual known to the Department.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Police Officer Duane Harper, on or about April 13, 2024, while off-duty and assigned to the Housing Police Service Area #3, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer impeded an investigation by failing to disclose that he had initiated a physical altercation with an individual known to the Department.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 21, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Ana Maradiaga¹ as a witness and entered the Internal Affairs Bureau ("IAB") interview of A.A. [REDACTED] into evidence. Respondent called Senada Paljevic to the stand and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of both specifications.

¹ Sergeant Ana Maradiaga of IAB took the stand and testified that she was assigned to investigate this incident. She acknowledged that other members of the service interviewed the parties and gathered evidence in this matter. Her testimony mainly consisted of describing the various exhibits which are in evidence and have been reviewed by the tribunal.

ANALYSIS

This case arises from an allegation that Respondent wrongfully engaged in a physical altercation with [REDACTED] (A.A.)², the former husband of Respondent's partner, Senada Paljevic. It is also alleged that Respondent attempted to misdirect the responding officers by failing to inform them that he initiated the fight. The following is a summary of facts which are not in dispute.

On the date of the incident, A.A. and Ms. Paljevic, who have three children together, had been divorced for approximately six years. Their eldest daughter was participating in a taekwondo tournament. Respondent drove Ms. Paljevic and her children, as well as another family member whose child was also participating, to the tournament. As the group waited for the rest of the students from the taekwondo school to arrive, A.A. walked into the lobby and approached them. Respondent extended his hand to A.A. and introduced himself. A.A. refused to shake Respondent's hand and questioned why, in sum and substance, he was there since he had no children present.

A.A. and Ms. Paljevic, who are both of Albanian descent, began arguing, partially in English, but mostly in Albanian. Their eldest daughter became upset and Respondent comforted her. Eventually, A.A. and his son moved a few feet away from where Respondent and Ms. Paljevic were standing. Respondent had a sports bag, belonging to another child, on his shoulder. A.A. stared at Respondent for several seconds. He then walked over to Respondent, demanding that Respondent give him the bag, which he mistakenly believed belonged to his daughter. The parties disagree about whether A.A. grabbed the strap of the bag. There is also a dispute about Respondent's reaction: whether he slapped A.A.'s hand away or if he hit A.A. in the face.

² [REDACTED] did not appear before the tribunal and will be referred to by his initials, A.A. in this decision,

However, it is undisputed that immediately thereafter a tussle ensued between the two men during which Respondent swept A.A.'s legs and took him down to the ground.

Peace officers who were working at the venue responded. Respondent identified himself as a police officer and asked them to call 911. Sergeant Junxian Wu came to the location and interviewed Ms. Paljevic, A.A., as well as Respondent. Sergeant Wu called Captain Richard Porto, Commanding Officer of the 111th Precinct, who notified the Internal Affairs Bureau ("IAB") of the incident. He initially instructed Sergeant Wu to have Respondent place A.A. under arrest for Harassment, which he did. After that, Captain Porto reviewed the surveillance footage and interviewed A.A. and Ms. Paljevic. He then called IAB again to change his assessment of Respondent's actions, naming him as the initial aggressor in the altercation. (Tr. 58-63, 93-108, 112; Dept. Ex. 1, *Capt. Porto's first call to IAB*; Dept. Ex. 2, *ICAD*; Dept. Ex.3, *Sgt. Wu's body-worn camera footage*; Dept. Ex. 4 and 5, *Surveillance footage*; Dept. Ex. 6, *Edited surveillance footage*, Dept. Ex. 7, *Capt. Porto's second call to IAB*; Dept. Ex. 9, *IAB interview with A.A.*)

A.A. did not appear to testify at trial. The Department introduced the recording of his April 13, 2024, interview with Captain Porto and Sergeant Allen Moore from IAB into evidence. During the interview, A.A. recounted coming into the lobby. He explained that he had never met Respondent and contended that he was unaware that Respondent was a police officer. A.A. recalled that he reacted to Respondent's attempt to introduce himself by stating, "I don't want to meet you, do you have kids here, what are you doing with my kids." According to A.A., when he saw Respondent attempting to comfort his child, he told Respondent, "Don't touch my daughter."

A.A. asserted that he noticed Respondent had a bag on his shoulder, so he walked over and demanded, "that book bag is my daughter's, let me have it." He admitted reaching for the bag but maintained that he did not touch Respondent. A.A. initially stated that when he did so, Respondent slapped him, causing his glasses to fall to the ground. He recounted, "We go back and forth, and he grabbed me and brought me to the floor." When asked for clarification about whether Respondent hit his hand or his face, A.A. answered, "face, face, I think, I don't know what happened, maybe I hit him." He reiterated several times that the incident happened so quickly that he was not sure what happened. A.A. conceded that he did not sustain any injuries, and that Respondent did not say anything to him during the incident. (Dept. Ex. 9)

The Department also presented surveillance footage of the lobby, Department Exhibits 4 and 5, which captured the incident from two different vantage points. Both videos were blurry, making it difficult to make out details. The Department edited Exhibit 5, offering a shortened, zoomed-in clip, Department Exhibit 6, however, the view of the parties in both the original and the edited footage is partially blocked by two large screens.

Department Exhibit 4, although taken from a distance, offered the least obstructed view of the incident. The following is a summary of the relevant portions:

08:36:59 – 08:37:21: Respondent can be seen in the upper left-hand corner with his back to the camera. He is wearing dark clothes with the strap of a lighter colored bag on his left shoulder. A.A. is standing to his left a few feet away, with his upper body cut off from view.

08:37:22-08:37:25: A.A. walks toward Respondent reaching his right hand towards Respondent's left shoulder. Ms. Paljevic rushes towards the men. Respondent's right arm moves towards A.A., whose head moves back.

08:37:25 – 08:37:28: Both men have their hands on each other and are struggling with one another as Ms. Paljevic tries to separate them.

08:37:28 – 08:38:02: Respondent sweeps A.A.'s legs out from under him and both men fall to the floor. A.A. is on his back and Respondent is above him.

Another man pulls Respondent up and he walks away. A.A. gets up and repeatedly tries to get past Ms. Paljevic towards Respondent. He stops when the peace officers arrive.

The Department also offered Sergeant Wu's body-worn camera footage which includes his conversations with A.A., Ms. Paljevic, and Respondent on the scene, as well as his cell phone discussions with Captain Porto. Respondent described the incident to Sergeant Wu. He made a batting motion with his hand when he explained his reaction to A.A.'s attempt to take the bag from him. Respondent told Sergeant Wu, "I just took him and put him to the ground at this point because he looked like he wanted to fight." (Dept. Ex. 3 at 06:35-07:11)

In the same body worn camera footage, during his conversation with Sergeant Wu, A.A. made a reaching motion with his hand as he described, "so I'm trying to [take] the book bag...[Respondent] got me nice, he put me down, I don't know what happened there." (Dept. Ex. 3 at 14:28-15:00)

Respondent took the stand and testified that on the date in question he was at the taekwondo event with Ms. Paljevic, who was 28 weeks pregnant with his child. He recalled holding the sports bag of their friends' child on his shoulder. Respondent described seeing A.A. enter and observed that he was a little "red in the face" and "he seemed pretty upset already." He stated that A.A.'s hands were in a fist, but admitted that he, "didn't think anything of it." Respondent contended that when he tried to shake A.A.'s hand and introduce himself, A.A., "looked me up and down and then he put his hand back in his pocket." Respondent claimed that A.A. then started "cursing" at him and told him to leave. (Tr. 93-96, 104)

Respondent recalled A.A. pointing at Ms. Paljevic's stomach and saying to him, "when your child is born you can go support your kids, these are my kids, you better get out of here." Respondent asserted that A.A. was also arguing with Ms. Paljevic, but because they were

speaking in Albanian, he did not understand what they were saying. He explained that in an attempt to "defuse the situation" Respondent told Ms. Paljevic to be quiet and stop arguing, which she did. (Tr. 97-99)

Respondent detailed that A.A. then walked "8-10" feet away with his son and began "staring" at him. Respondent described watching A.A. out of the corner of his eye and noticed that A.A. continued to look at him. He recalled A.A., "angry walking toward me" and saying something about his daughter's bag. Respondent testified that he was concerned that A.A. was going to attack him. (Tr. 101-2, 106)

According to Respondent, as A.A. got within an arm's length he grabbed the strap of the bag, as well as Respondent's vest. Respondent recounted that he "swatted" A.A.'s hand away and that A.A. then put both of his hands up, "like he wanted to grab me or punch back" and was "ready for a fight." Respondent asserted that he took A.A. by the shoulders and then, "[lifted] him up lightly off his legs and then sweep his legs to put him on the ground." Respondent explained further, "If we were both standing up, then it would be a tussling match between me and him or a physical fight between me and him and I didn't want that. So, I thought the safest route and the best thing to do was to put him on the ground and to hold him." Respondent denied striking A.A. in any way once he got him onto the floor. Respondent recalled that an unknown person came behind him and pulled him up, "So that's when I let go of him and stepped and [backed] away." (Tr. 102-8)

Respondent testified that he took out his NYPD identification to show the peace officers who arrived at the scene because he had, "just had a physical altercation with an individual that I don't know at all." He explained that he asked the officers to call 911 and made sure Ms. Paljevic was not hurt before being escorted to a conference room in the library. Respondent recalled

speaking to Captain Porto on the date in question, and that he was interviewed by IAB on a later date. (Tr. 108-12)

During cross-examination, Respondent speculated that A.A.'s head "jerked back when I went to grab him by the top of his shoulder." Respondent agreed that throughout their entire meeting, including when he stared at Respondent in the lobby, A.A. was "disrespecting" him. In addition, he opined that A.A. had "crossed the line" when he grabbed the bag strap and his clothing and that he took A.A. to the ground in order to protect himself. (Tr. 114-15, 117-18, 121)

Senada Paljevic took the stand and testified that several months before the date in question she and Respondent had moved in together and were expecting a child. Since Respondent was living with his children, she tried to arrange a meeting between A.A. and Respondent. Ms. Paljevic contended that A.A. refused because he was aware that Respondent is Black. She recounted that A.A. told her that he did not want his children in a family with people of another race. According to Ms. Paljevic, she knew A.A. would be at the taekwondo tournament because he texted her the night before to confirm. She recalled seeing him walk towards them across the lobby, and watched Respondent extend his hand to shake A.A.'s hand. Ms. Paljevic claimed that A.A. balled his hand into a fist and put it into his pocket. (Tr. 58-63)

Ms. Paljevic alleged that A.A. was telling Respondent to, "get the f—k out of here, these are not your kids" and that he called Respondent a "racial slur" in Albanian. Ms. Paljevic explained that her children, who speak Albanian, were present. According to Ms. Paljevic, A.A. repeatedly stated to Respondent, "you better leave or else." In addition, he told his older daughter, "He's not your dad, I'm your dad," causing her to cry. Ms. Paljevic conceded that she

was yelling back at A.A. She testified that she ceased sparring with him when Respondent said to her, “just stop talking to him, let him talk to himself.” (Tr. 64-67)

Ms. Paljevic recounted that A.A. then walked a few feet away from them with their son. She described him as, “pacing, his hands in a ball in a fist. He was putting [them] in his pockets and taking them out.” She asserted that the behavior made her worried because she had seen him act that way before and she was hoping that “nothing was gonna happen.” Ms. Paljevic described A.A. walking “aggressively” towards Respondent to “snatch” the bag. She recalled trying to intervene by placing herself between the men. She continued, “[A.A.] was grabbing [Respondent], the bag, and his vest and his shoulder. Then [Respondent] swatted his hand away and [A.A.] was trying to go back and forth. So, I know then [Respondent] kind of put him down to the ground.” (Tr. 69-71)

When asked to elaborate about the take down Ms. Paljevic stated, “it happened really fast. [By] the time I turned around [A.A.] was down and [A.A.] was still trying to fight.” She recounted hearing Respondent say to A.A., “I’m not trying to fight you, just stop trying to fight me.” Ms. Paljevic recalled that once A.A. was back on his feet he, “still has his eyes on Duane and was just trying to figure out what he’s doing and looks like he just wants to keep fighting.” She admitted that at that point she, “pushed [A.A.] probably like twice” to keep him away from Respondent. (Tr. 71-73, 86, 88)

Specification 1: Physical Altercation

Respondent is charged with wrongfully engaging in a physical altercation with A.A. The parties agree that Respondent and A.A. had an interaction which resulted in Respondent sweeping A.A.’s legs out from under him and putting him on the ground. Administrative Guide 304-06 prohibits police officers from engaging in conduct prejudicial to the good order,

efficiency, and discipline of the Department. This covers a range of on duty and off duty behaviors. The question for the tribunal is whether the Department has proven, by a preponderance of the credible evidence, that Respondent acted unreasonably. I find that they did not.

A.A. did not appear before the tribunal to give his version of events, instead the Department presented Captain Porto's IAB interview with him from the date of the incident. It is well-settled that hearsay evidence is admissible in administrative proceedings and may indeed form the sole basis for a finding of fact. However, the hearsay must be evaluated carefully to determine whether it is sufficiently reliable. In the absence of live testimony from A.A., I carefully considered his prior unsworn statements, in conjunction with the other evidence presented at trial.

During his conversation with Captain Porto, A.A. volunteered that he refused to shake Respondent's hand, questioned why Respondent was there, and was annoyed that Respondent was comforting his daughter while holding what he believed was her bag. These admissions make A.A.'s insistence that he calmly asked for the sports bag, without touching Respondent, difficult to believe. Indeed, that version of events was contradicted by the surveillance footage which showed A.A. staring at, then suddenly striding towards Respondent with his hand reaching towards the strap of the bag. A.A. then struggled with Respondent, with both men holding onto each other, before A.A. was taken to the ground. In addition, when asked directly, A.A. was hesitant to definitively state whether Respondent hit him in the face and conceded, "maybe I hit him." In-person questioning and cross-examination would have allowed counsel to explore and clarify these statements and inconsistencies. In the absence of such testimony, it is not possible to fully credit his version of events.

In contrast, beginning on the date of the incident, and throughout all of the proceedings, Respondent has maintained that he did not initiate the skirmish. On the stand, he testified in a detailed and consistent manner about the events. He described defending himself when A.A. grabbed the strap of the bag by "swatting" A.A.'s hand. Respondent explained that, since A.A. seemed inclined to continue fighting, he took him to the ground to end the encounter quickly.

Although emotional at times, Ms. Paljevic corroborated Respondent's account. She testified in a forthcoming manner that A.A. initiated the physical contact. She confessed that she engaged in a tense verbal exchange with A.A. which ended because Respondent advised her to stop. Her description of A.A. staring at and then suddenly approaching Respondent is consistent with the surveillance footage. In addition, I credit Ms. Paljevic's explanation that she believed, based upon her prior relationship with A.A., that he was preparing for a physical fight when he was staring at Respondent.

The entire record, including his own statements, revealed that A.A.'s behavior towards Respondent was antagonistic from the moment he walked into the lobby. The surveillance footage, although of very poor quality, corroborated that A.A. approached Respondent and reached for the bag. The videos also showed that Respondent reacted by moving his hand towards A.A., which resulted in a tussle between the two men where they were both holding onto each other.

Respondent was not looking for a fight, he even told Ms. Paljevic to stop arguing and ignore A.A. It was A.A. who initiated the physical contact by grabbing the sports bag from Respondent. In turn, Respondent acted reasonably, employing a minimal amount of force in sweeping A.A.'s legs and taking him to the ground. Based on the foregoing, the Department has failed to prove, by a preponderance of the credible evidence, that Respondent wrongfully

engaged in a physical altercation with A.A. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2: Impeding an investigation

Respondent is also charged with impeding the investigation into this incident by failing to inform Sergeant Wu that he initiated a physical altercation with A.A.

NYPD Administrative Guide 304-10 prohibits members of service from impeding an investigation by intentionally making statements that misdirect or misinform the investigator. (Matrix at 33)

During summation, the Department Advocate directed the tribunal's attention to Respondent's initial conversation, captured on body-worn camera, with Sergeant Wu. In particular, they accused Respondent of, "improperly casting A.A. as the aggressor" in the altercation. (Tr. 151) As noted above, the Department has failed to prove that Respondent was the primary aggressor. Indeed, it is undisputed that A.A., after making it clear that he was unhappy that Respondent was at the tournament, approached Respondent and physically attempted to take the sports bag. It was after A.A. reached for and grabbed the bag that Respondent reacted by slapping his hand away. Rather than back off, A.A. continued the fight culminating in the men tussling with one another and Respondent taking A.A. to the ground. Looking at the totality of the circumstances, it is reasonable to conclude that A.A. initiated the altercation through his attitude and physical contact with Respondent.

NYPD officers are required to be forthcoming at the scene of off-duty incidents. In this case, Respondent immediately identified himself as a police officer to the peace officers, instructed them to call 911, and remained on the scene. In addition, Respondent readily admitted

to Sergeant Wu that he forcibly took A.A. to the ground and consistently maintained the position that he took that action in response to A.A. grabbing the bag and his clothing.

In the instant matter the Department has failed to prove that Respondent's statements to Sergeant Wu were untrue or that he intentionally withheld information from him with the intent to misdirect the investigation. Accordingly, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

MAY 05 2016

JESSICA S. TISCH
POLICE COMMISSIONER